

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 2, 2026
8:30 a.m./1:30 p.m.

1. JOSH ANDERSON V. YU CHEN CHANG

25FL0020

On April 7, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. This matter was originally filed and denied on an ex parte basis. All required documents were served by mail on April 23rd, because this is a post-judgment request, Petitioner also filed a Declaration Regarding Address Verification.

On April 14, 2026, Respondent also filed an RFO seeking custody and visitation orders. The requests were originally filed ex parte and the court ordered the minors to be immediately returned to the state of California. All other requests were denied on an ex parte basis. There is no Proof of Service for the RFO therefore, this matter is dropped from calendar.

A Child Custody Recommending Counseling (CCRC) appointment was scheduled to take place on May 4, 2026, however neither party appeared at the appointment. As such, a memorandum of no appearance was prepared and filed with the court. The court does not have a Certificate of Mailing for this document so it does not appear that it was sent to the parties.

Petitioner filed and served updating declaration on June 22nd.

It is unclear to the court if the parties were aware of the scheduled CCRC appointment. The parties are ordered to appear for the hearing.

TENTATIVE RULING #1: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 2, 2026
8:30 a.m./1:30 p.m.

2. JOSHUA KHOSHSEFAT V. HEIDI KHOSHEFAT

24FL0682

On July 30, 2025, Respondent filed a Request for Order (RFO) seeking a variety of orders as stated therein. She filed a Memorandum of Points and Authorities concurrently therewith.

A Declaration Re Diligence was filed on October 20th evidencing attempted service of process on Jane Yeun Sook Khoshsefat. Another was filed on October 23rd.

There is no Proof of Service for the RFO, however, on October 24th, Petitioner filed and served a Responsive Declaration to Motion for Joinder and a Responsive Declaration to Request for Order thereby waiving any potential defect in service.

Respondent asks that the court grant joinder of Jane Yeun Sook Khoshsefat. She asks for a finding that Petitioner breached his fiduciary duty on several occasions and that the court set aside the transfer of title to the community property Lamborghini. She requests title to the Lamborghini be put in the names of both parties. Finally, she requests attorney's fees and costs pursuant to Family Code § 1101 and § 271.

Petitioner opposes the request for joinder and offers several alternatives.

Given that the Lamborghini was purchased during the marriage and title was held in the family trust prior to transfer, title to the Lamborghini is ordered to be placed in the names of both parties pending trial on the issue of property division. The court is reserving jurisdiction to make a finding that Petitioner breached his fiduciary duty and award sanctions pursuant to Family Code § 1101 and/or Family Code § 271.

Regarding the joinder, "[t]he court may order that a person be joined as a party to the proceeding if the court finds that it would be appropriate to determine the particular issue in the proceeding and that the person to be joined as a party is either indispensable for the court to make an order about that issue or is necessary to the enforcement of any judgment rendered on that issue." Cal. Rule Ct. 5.24(e)(2).

After reviewing the pleadings, it is unclear to the court whether Mrs. Khoshsefat is an indispensable party. Transferring title to the Lamborghini back to the parties resolves the need for joinder in that regard. However, there is still the outstanding issue of deposits Petitioner made to his mother. It is unclear to the court if Respondent has been able to obtain all necessary records via subpoena or if Petitioner and his mother have objected to any such subpoenas. It is further unclear if the community estate is sufficient to cover any